

25LBCV01997 25LBCV01997

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-04

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Defendant moves to join D&A

Limo Service, Inc., as an additional party plaintiff in this action. Defendant provides evidence, by way of the subject purchase agreement, that Plaintiff was a co-purchaser of the vehicle with D&A Limo Service, Inc.

CCP §389 provides, in pertinent part:

(a) A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

(b) If a person as described in paragraph (1) or (2) of subdivision (a) cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of

relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.

Clearly a co-owner of an automobile is a necessary party to a lemon law lawsuit under the standard set forth in the statute. In light of the lack of opposition to the motion, the motion is granted.

Plaintiff must file an amended complaint adding D&A Limo Service, Inc. as an additional plaintiff within twenty days. The Court notes that there is a summary judgment motion scheduled for hearing on 10/29/26. Normally the filing of an amended complaint moots a summary judgment motion. Because Plaintiff is only amending for the purpose of adding a second plaintiff, whose interests are completely aligned with Plaintiff, the Court will allow the summary judgment motion to proceed as though it were directed at the amended complaint.

Upon receipt of the amended complaint, Defendant may file a responsive pleading if it chooses to do so. If it does not do so, its answer to the original complaint shall be deemed its answer to the amended complaint and no default shall be requested or entered.

Defendant is ordered to give notice.